

IN THE SENATE

SENATE BILL NO. 1378

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PARKS AND RECREATION; AMENDING SECTION 57-1901, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE OFF-ROAD MOTOR VEHICLE ACCOUNT; AMENDING SECTION 67-7106, IDAHO CODE, TO REVISE PROVISIONS REGARDING SNOWMOBILES; AMENDING SECTION 67-7107A, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE STATE SNOWMOBILE AVALANCHE FUND; AMENDING SECTION 67-7113, IDAHO CODE, TO REVISE PROVISIONS REGARDING VIOLATIONS AND LIABILITY; AMENDING SECTION 67-7126, IDAHO CODE, TO REVISE PROVISIONS REGARDING OFF-HIGHWAY VEHICLES AND THE ASSOCIATED ACCOUNT; AMENDING SECTION 67-7127, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE USE OF MONEYS IN THE OFF-HIGHWAY VEHICLES ACCOUNT; AMENDING SECTION 67-7128, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE OFF-HIGHWAY VEHICLE ADVISORY COMMITTEE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 57-1901, Idaho Code, be, and the same is hereby amended to read as follows:

57-1901. CREATION OF OFF-ROAD MOTOR VEHICLE ACCOUNT -- PURPOSE. (1) There is hereby created and established in the state treasury an account to be known as the "off-road motor vehicle account" to which shall be credited or deposited all moneys accruing for the purposes of the account.

(2) The purposes for which moneys in the account may be used shall be to:

(a) ~~acquire~~ Acquire, purchase, improve, repair, maintain, furnish, and equip off-road motor vehicle facilities and sites or areas used by off-road vehicles on public or private land, ~~and to assist;~~

(b) Assist with the enforcement of laws and regulations governing the use of off-road vehicles in the state of Idaho; ~~;~~

(c) Secure special leases, use licenses, or recreation easements or permits, or to purchase land under private, state, or federal ownership to be used for public recreational off-road vehicle activity;

(d) Secure, maintain, construct, or develop trails and other public recreational facilities for off-road vehicle use on private, state, and federal lands;

(e) Finance the formulation and implementation under the park and recreation board's direction of an off-the-road rider education program; and

(f) Acquire applicable federal matching funds.

(3) The park and recreation board is charged with the administration of the account for the purposes specified herein.

(4) The provisions of section 67-4228, Idaho Code, are ~~made~~ applicable ~~for the provisions of~~ to this section.

(5) All claims against the account shall be examined, audited, and allowed in the same manner now or hereafter provided by law for claims against

the state, except that the board is hereby empowered to enter into agreements with legal governmental agencies in Idaho and Idaho nonprofit entities, for the disbursement of funds to them on a project by project basis.

(6) For the purposes of this section, "off-road vehicle" has the same meaning as "off-highway vehicle," defined in section 67-7101, Idaho Code.

SECTION 2. That Section 67-7106, Idaho Code, be, and the same is hereby amended to read as follows:

67-7106. SNOWMOBILES -- DISTRIBUTION OF MONEYS COLLECTED -- COUNTY SNOWMOBILE FUND -- STATE SNOWMOBILE FUND -- DEPARTMENT OF LANDS ALLOCATION -- STATE SNOWMOBILE SEARCH AND RESCUE FUND -- STATE SNOWMOBILE AVALANCHE FUND. (1) Each vendor shall, not later than the fifteenth day of each month, remit all moneys collected under the provisions of sections 67-7103 and 67-7104, Idaho Code, to the state treasurer for credit to the state snowmobile fund, established in the dedicated fund, to be administered by the director, except that the amounts designated in this subsection from each snowmobile certificate of number fee, each rental certificate of number fee, and each nonresident snowmobile user certificate issued by the vendor shall be credited by the state treasurer to each of the following funds or entities:

(a) ~~Two dollars (\$2.00)~~ One dollar (\$1.00) to the state snowmobile search and rescue fund created in section 67-2913A, Idaho Code;

(b) One dollar (\$1.00) to the state snowmobile avalanche fund created in section 67-7107A, Idaho Code; and

(c) One dollar (\$1.00) to the Idaho department of lands to provide snowmobile opportunities and to repair damage directly related to snowmobile use, provided that:

(i) ~~the~~ The Idaho department of lands shall annually publish a report specifically identifying the uses of moneys allocated pursuant to this subsection; and

(ii) Any funds so credited that remain or are unencumbered by the department of lands after three (3) fiscal years shall be returned to the state treasurer for deposit in the state snowmobile fund.

(2) Each county with a bona fide snowmobile program shall be entitled to receive from the department eighty-five percent (85%) of the moneys generated for that county during that certificate of number period. Counties with a bona fide snowmobile program may use up to fifteen percent (15%) of their county snowmobile moneys upon recommendation by their county snowmobile advisory committee for snowmobile law enforcement purposes.

(3) Up to fifteen percent (15%) of the revenue generated from snowmobile certificates of number each year may be used by the department to defray administrative costs. Any moneys unused at the end of the fiscal year shall be returned to the state treasurer for deposit in the state snowmobile fund.

(4) Vendors shall be entitled to retain a handling fee of one dollar and fifty cents (\$1.50) per certificate of number or nonresident user certificate. Handling fees collected by the department shall be deposited to the state snowmobile fund.

(5) For those certificates of number not designated to a bona fide county snowmobile program, the moneys generated shall be deposited to the

1 state snowmobile fund, and such fund shall be available to the department for
2 snowmobile-related expenses.

3 SECTION 3. That Section 67-7107A, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 67-7107A. STATE SNOWMOBILE AVALANCHE FUND -- STATE SNOWMOBILE
6 AVALANCHE FUND COMMITTEE. (1) There is hereby established in the state
7 treasurer's office an account to be known and designated as the "state snow-
8 mobile avalanche fund." This fund shall receive one dollar (\$1.00) from each
9 snowmobile certificate of number fee, one dollar (\$1.00) from each rental
10 certificate of number fee, and one dollar (\$1.00) from each nonresident
11 snowmobile user certificate issued by vendors, as provided for in section
12 67-7106, Idaho Code. Any amounts credited to this fund that remain or are
13 unencumbered after three (3) fiscal years shall be returned to the state
14 treasurer for deposit in the state snowmobile fund. This fund shall be man-
15 aged by the state snowmobile avalanche fund committee.

16 (2) The board shall appoint a state snowmobile avalanche fund committee
17 (SSAFC) of five (5) members. The membership of the SSAFC shall consist of the
18 director of the United States forest service national avalanche center, or
19 his designee, who shall chair the SSAFC, and one (1) active snowmobiler from
20 each of the following districts: north Idaho, central Idaho, south Idaho,
21 and east Idaho. These four (4) regional members of the SSAFC shall be ap-
22 pointed by the board from a list of no fewer than two (2) persons nominated by
23 the Idaho state snowmobile association, and said members shall serve a term
24 of four (4) years, except that the term of the initial appointees shall com-
25 mence on the date of appointment and shall be staggered such that at least
26 one (1) position is up for appointment each year. Each member of the SSAFC
27 must be a qualified elector of the state, maintaining a residence and domi-
28 cile within the district of appointment. For purposes of SSAFC membership
29 and representation, the four (4) districts shall be as follows:

30 (a) North Idaho consists of Boundary, Bonner, Kootenai, Benewah,
31 Latah, Shoshone, Clearwater, Nez Perce, Lewis, and Idaho counties.

32 (b) Central Idaho consists of Adams, Washington, Valley, Payette, Gem,
33 Boise, Canyon, Ada, Elmore, and Owyhee counties.

34 (c) South Idaho consists of Lemhi, Custer, Butte, Camas, Blaine, Good-
35 ing, Lincoln, Jerome, Minidoka, Twin Falls, and Cassia counties.

36 (d) East Idaho consists of Clark, Fremont, Jefferson, Madison, Teton,
37 Bonneville, Bingham, Power, Bannock, Caribou, Bear Lake, Franklin, and
38 Oneida counties.

39 (3) The duties of the SSAFC include:

40 (a) Determining and directing distributions from the state snowmobile
41 avalanche fund, at least annually, to avalanche centers within the
42 state of Idaho or avalanche centers providing reporting services within
43 the state of Idaho operated and administered by the national avalanche
44 center, United States forest service, or United States department of
45 agriculture. The SSAFC may require that applications or proposals be
46 submitted for review and consideration from avalanche centers seeking
47 funds from the state snowmobile avalanche fund. The SSAFC must require
48 the funds so distributed be used for existing avalanche center oper-
49 ations and maintenance within or for the benefit of areas within the

1 state of Idaho, which include: avalanche forecaster labor; website
 2 and information technology improvements and maintenance; snowmobiles
 3 and related equipment; remote weather station installation and upkeep;
 4 avalanche education costs; and safety equipment;

5 (b) Representing the best interests of the snowmobile users in the dis-
 6 trict from which each member is appointed; and

7 (c) Advising existing avalanche centers in Idaho and registered non-
 8 profit organizations that support them as to whether current projects
 9 meet the needs of snowmobile users in that area.

10 (4) The SSAFC shall be compensated as provided in section 59-509(b),
 11 Idaho Code.

12 SECTION 4. That Section 67-7113, Idaho Code, be, and the same is hereby
 13 amended to read as follows:

14 67-7113. VIOLATIONS -- ACCOUNTABLE FOR PROPERTY DAMAGE. (1) Unless
 15 otherwise provided in this chapter, any person who violates any provision
 16 of this chapter, or any rule promulgated by the department pursuant to this
 17 chapter, shall be guilty of an infraction and shall be punished by a fine of
 18 one hundred dollars (\$100).

19 (2) In addition thereto, the operator ~~and/or~~ owner of the snowmobile or
 20 OHV shall be responsible and held accountable to the owner of any lands where
 21 trees, shrubs, or other property have been damaged as the result of travel
 22 over their premises.

23 (3) Whenever any owner of public or private land gives notice of and
 24 imposes closures, restrictions, rules, or prohibitions in relation to the
 25 use of the owner's land by snowmobile or OHV operators, any person who vio-
 26 lates the same shall be guilty of trespass, punishable as provided by section
 27 18-7008, Idaho Code. For the purposes of this subsection, "notice" means ac-
 28 tual or constructive notice.

29 SECTION 5. That Section 67-7126, Idaho Code, be, and the same is hereby
 30 amended to read as follows:

31 67-7126. OFF-HIGHWAY VEHICLES -- ESTABLISHMENT OF ACCOUNT -- DISTRI-
 32 BUTION OF FEES. (1) There is hereby established in the state treasurer's of-
 33 fice an account to be known and designated as the "OHV recreation account."

34 (2) The ~~fee of twelve dollars~~ (\$12.00) ~~fee~~ collected for off-highway
 35 vehicle certificates of number and nonresident user certificates ~~under the~~
 36 ~~provisions of~~ pursuant to sections 67-7122 and 67-7124, Idaho Code, shall be
 37 allocated as follows:

38 ~~(1)~~ (a) Vendors shall charge and retain one dollar and fifty cents
 39 (\$1.50) for a handling fee;

40 ~~(2)~~ (b) Up to fifteen percent (15%) of the revenue generated from OHV
 41 certificates may be used by the department to defray administrative
 42 costs and the production of certificates of number, nonresident user
 43 certificates, and validation stickers. Any moneys unused at the end
 44 of the fiscal year shall be returned to the Idaho state treasurer for
 45 deposit in the OHV recreation account;

46 ~~(3)~~ (c) One dollar (\$1.00) shall be deposited into the off-highway ve-
 47 hicle law enforcement fund. Moneys in said fund shall be ~~paid and used~~

as follows: used only for off-highway-related law enforcement activities and allocated pursuant to this paragraph.

~~(a) (i)~~ Sheriffs of counties with a current or an actively developing bona fide off-highway vehicle law enforcement program that is recognized by the department shall receive moneys from the fund based upon a formula as provided in rule promulgated by the board; and be allocated a minimum of twenty-five hundred dollars (\$2,500).

(ii) Moneys remaining in the fund shall be allocated among such counties as follows:

1. Fifty percent (50%) based on the use area designation made by purchasers of off-highway vehicle certificates;

2. Twenty-five percent (25%) based on the number of off-highway vehicle education certificates awarded for completing off-highway vehicle rider safety classes;

3. Twelve and one-half percent (12.5%) based on the total number of off-highway vehicle inspections performed; and

4. Twelve and one-half percent (12.5%) based on the total number of off-highway vehicle citations issued;

~~(b) Moneys from the fund shall be used only for off-highway-related law enforcement activities; and~~

~~(4) (d)~~ One dollar (\$1.00) shall be allocated to the Idaho department of lands to provide off-highway vehicle opportunities and to repair damage directly related to off-highway vehicle use. Any funds so credited that remain or are unencumbered by the department of lands after three (3) fiscal years shall be returned to the state treasurer for deposit in the OHV recreation account. The department of lands shall annually publish a report specifically identifying the uses of moneys allocated pursuant to this subsection; and

~~(5) (e)~~ The remaining funds shall be transmitted to the state treasurer's office for deposit to the credit of the OHV recreation account, all such moneys to be transmitted to the state treasurer on or before the tenth day of each month.

(3) An off-highway vehicle law enforcement program shall be bona fide if it is sponsored by a county sheriff to promote off-highway vehicle safety, education, and law enforcement and is overseen by an advisory committee of three (3) or more individuals that includes at least one (1) sheriff or deputy sheriff and two (2) representatives of active off-highway vehicle users that reside in the applicable county and who are not law enforcement officers.

(a) The department may withhold recognition of a bona fide off-highway vehicle law enforcement program if a county failed to perform its off-highway vehicle enforcement duties within the past calendar year.

(b) A bona fide off-highway vehicle law enforcement program shall submit an annual report documenting the previous year's accomplishments to the department by March 1 of each year. The report shall include:

(i) The names of the advisory committee members;

(ii) The number of off-highway vehicle safety class certificates awarded;

(iii) The number of off-highway vehicle inspections completed;

(iv) The number of off-highway vehicle accidents reported; and

(v) The number of off-highway vehicle citations issued.

(c) The department may require such report be submitted using certain forms.

(4) Off-highway vehicle certificates' use area designations shall be collected and reported from January 1 through December 31 of the preceding year.

(5) The department shall annually publish a report specifically identifying the use of revenues generated from OHV certificates of number and nonresident user certificates. Collection of fees for off-highway vehicle certificates of number and nonresident user certificates shall not impose any additional liability on the state of Idaho or any of its political subdivisions or upon the employees of the state ~~and~~ or of its political subdivisions, and those entities and persons shall retain the limitations of liability provided by section 36-1604, Idaho Code, regardless of the use of such fees.

SECTION 6. That Section 67-7127, Idaho Code, be, and the same is hereby amended to read as follows:

67-7127. OFF-HIGHWAY VEHICLES -- USE OF MONEYS IN ACCOUNT. The board shall administer the OHV recreation account. The moneys derived from this account shall be used as follows:

(1) For the securing of special leases, use licenses, or recreation easements or permits, or for the actual purchase of land under private, state, or federal ownership to be used for public recreational off-highway vehicle activity;

(2) For the securing, maintenance, construction or development of trails and other public recreational facilities for off-highway vehicle use on private, state, and federal lands;

(3) To finance the formulation and implementation under the board's direction of an off-the-road rider education program; ~~and~~

(4) To acquire applicable federal matching funds-; and

(5) To acquire, purchase, improve, repair, maintain, furnish, and equip off-highway vehicle facilities and sites or areas used by off-highway vehicles on public or private land.

SECTION 7. That Section 67-7128, Idaho Code, be, and the same is hereby amended to read as follows:

67-7128. ~~OFF-ROAD MOTOR~~ OFF-HIGHWAY VEHICLE ADVISORY COMMITTEE -- CREATION -- SELECTION -- TERM OF OFFICE -- DUTY. (1) The park and recreation board shall appoint an ~~off-road motor~~ off-highway vehicle advisory committee ~~(ORMV)~~ (OHVAC) of nine (9) members. The membership of the advisory committee shall consist of three (3) members each from northern Idaho, southwestern Idaho, and southeastern Idaho. ~~Two (2) members from each area shall represent the following groups: motorbikes, ATV or UTV riders and snowmobilers. One (1) member interested in ORMV projects shall be appointed from each area without regard to the recreational activity in which that member participates and shall represent interests other than motorbike, ATV or UTV riders and snowmobilers.~~

1 (a) One (1) member from each area shall represent motorbike riders.

2 (b) One (1) member from each area shall represent ATV riders.

3 (c) One (1) member from each area shall represent UTV or specialty off-
4 highway vehicle riders.

5 (2) Each member of the advisory committee shall be chosen by the park
6 and recreation board to serve a term of three (3) years, except that the term
7 of the initial appointees shall commence on the date of appointment and shall
8 be of staggered lengths. Each member of the advisory committee shall be a
9 qualified elector of the state.

10 (3) Duties of the committee shall include:

11 (a) Representing the best interests of the ORMV off-highway vehicle
12 users and activities which they represent in the district from which
13 they are appointed;

14 (b) Advising the department as to whether proposed ORMV OHVAC projects
15 meet the needs of ORMV off-highway vehicle users in that area;

16 (c) Advising the department as to how funds can be used to rehabilitate
17 areas on public or private lands and how the department can assist in the
18 enforcement of laws and regulations governing the use of off-road off-
19 highway vehicles in the state of Idaho; and

20 (d) ~~The three (3) motorbike, all-terrain vehicle or utility type ve-~~
21 ~~hicle representatives from the ORMV advisory committee shall advise~~
22 Advising the department on matters relating to the use of moneys in the
23 motorbike OHV recreation account as provided for in section 67-7127,
24 Idaho Code.

25 ~~(2)~~ (4) The committee shall be compensated as provided in section
26 59-509(f), Idaho Code, and authorized by the department.

27 SECTION 8. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after
29 July 1, 2026.